

24SMCV01661 24SMCV01661

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Case Number: 24SMCV01661 Hearing Date: July 21, 2026 Dept: P

Tentative Ruling

Blanca

E. Vasquez v. American Honda Motor Co., Inc., Case No. 24SMCV01661

Motions:

(1) Honda's Motion to Compel Vehicle

Inspection

(2) Honda's Motion to Compel

Plaintiff's Deposition

Hearing

Date: July 21, 2026

Background

Plaintiff

Blanca E. Vasquez sues Defendant American Honda Motor Co. for three violations of the Song-Beverly Act pertaining to Honda's alleged failure to repair or repurchase Plaintiff's 2024 Honda CR-V when it experienced steering, electrical, engine, and suspension system defects. (Complaint, ¶ 10.)

On

April 9, 2024, Plaintiff filed the complaint.

On

November 11, 2024, the Court held an informal discovery conference regarding Honda's failure to produce documents responsive to Plaintiff's requests for production.

On

February 13, 2026, Honda filed these motions to compel vehicle inspection and motion to compel deposition. On March 24, 2026, Plaintiff filed opposition to the Motion to compel vehicle inspection, but not the motion to compel deposition.

Motion to Compel Vehicle Inspection

Code

of Civil Procedure section 2031.010(d) allows a party to inspect land or other property in the possession, custody, or control of any other party to the action.¿ (Code Civ. Proc., § 2031.010, subd. (d).)¿

The

party to whom a demand for inspection has been directed must respond with (1) a statement that the party will comply with the particular demand, (2) a representation that the party lacks the ability to comply with the demand or (3) an objection to the particular demand.¿ (Code Civ. Proc., § 2031.210, subd. (a).)¿¿¿

Under

CCP section 2031.310, on receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:¿

(1) A

statement of compliance with the demand is incomplete.¿

(2) A

representation of inability to comply is inadequate, incomplete, or evasive.¿

(3) An

objection in the response is without merit or too general.¿

A

motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (See Cal. Code Civ. Proc., § 2031.310(b)(1).) In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined “good cause” as a showing that there is “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.”

If

the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. *Sup.Ct.* (2002) 95 Cal. App.4th 92, 98.)

Trial

courts are vested with “wide discretion” to allow or prohibit discovery. (Williams v. *Superior Court* (2017) 3 Cal.5th 531, 540.)

Notice

of the motion to compel further must be given “within 45 days of service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing,” otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2031.310, subd. (c).)

It

is undisputed that Honda has good cause to inspect the vehicle at issue because it is the center point of this lemon law case. (See Motion to Compel, p. 4; Opposition, p. 3) Honda represents that in the six months since this motion was filed, the parties have been unable to set a date for the inspection and therefore require a court order.

Honda's

Motion to Compel Vehicle Inspection is GRANTED.

Motion to Compel Deposition

If a party to an action is served with a deposition notice and fails to appear or proceed, the noticing party may move for an order

compelling the deponent's testimony and the production of any documents described in the deposition notice. (Code Civ. Proc. § 2025.450(a).)

The Discovery Act confers upon litigants the right to take depositions without prior court order or approval and, accordingly, with an exception not here applicable, does not require any showing of good cause for the taking of depositions." (Kramer v. Superior Ct. Of Los Angeles Cnty. (1965) 237 Cal.App.2d 753, 755.) A deponent may be examined "regarding any matter, not privileged, which is relevant to the subject matter involved in the pending action, whether it relates to the claim or defense of the examining party or to the claim or defense of any other party." (Id. at 756.)

"A Motion under subdivision (a) shall comply with both of the following:

(1)

The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2)

The motion shall be accompanied by a meet and confer declaration. . ." (Code Civ. Proc. § 2025.450(b).)

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2025.450(g).)

Honda

represents that it noticed Plaintiff's deposition for January 19, 2026, that Plaintiff failed to appear for the deposition, and that it has been unable to take Plaintiff's deposition in the intervening six months. (Knighton Decl., ¶¶ 5, 8.) There is undisputedly good cause to take a Plaintiff's deposition in a civil case.

This

motion is unopposed. Plaintiffs offer no justification for her failure to appear at the deposition. Honda does not request sanctions.

Conclusion

Honda's

Motions to Compel Vehicle Inspection and Plaintiff's Deposition are GRANTED.